

FEDERAL MARITIME COMMISSION

Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

SM LINE CORPORATION, *Respondent*.

DOCKET NO. 23-01

Served: October 16, 2024

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

ORDER GRANTING COMPLAINANT'S MOTION REQUESTING A SUBPOENA TO SEALED SHIPPING USA, INC.

On October 11, 2024, Complainant Samsung Electronics America, Inc. filed a motion seeking issuance of a subpoena to SeaLead Shipping USA, Inc. for the purpose of locating Mr. Yoon-Jai "Mark" Lee. Complainant has reason to believe that SeaLead is the current employer of Mr. Lee, former SM Line Corporation Senior Vice President and subject of my September 23, 2024 order permitting Complainant to take a deposition after the discovery cutoff. Complainant's counsel has been unsuccessful in serving a subpoena on Mr. Lee despite efforts including calling SeaLead to obtain information about his whereabouts, emailing Mr. Lee, attempting service at Mr. Lee's office, surveilling his office for two days, and surveilling an address believed to be his home for two days. See, generally, Declaration of Allison N. Skopec. Respondent takes no position on the motion.

Having already determined that the information Complainant is seeking from Mr. Lee is directly relevant and material (see September 23, 2024 Order), I find that a subpoena to SeaLead for the limited purpose of ascertaining Mr. Lee's whereabouts so that he can be served is relevant and reasonable in scope. 46 C.F.R. § 502.131.

Upon consideration of the record, the arguments of the parties, and the findings above, it is

ORDERED that Complainant's Motion Requesting the Presiding Officer Issue a Third-Party Subpoena to SeaLead Shipping USA, Inc. for the Limited Purpose of Locating Mr. Yoon-Jai "Mark" Lee is **GRANTED**. It is further

ORDERED that Complainant must submit a subpoena, appropriately limited as set forth above, to judges@fmc.gov for issuance no later than **October 21, 2024**. It is further

ORDERED that the parties must submit a joint status report no later than **November 21, 2024**. The report should explain the status of Mr. Lee's deposition and set forth a schedule, if needed, for supplemental briefing.

ALEX CHINTELLA

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ALEX CHINTELLA
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Alex M. Chintella
Administrative Law Judge